

UNIT-I

CRIMINAL RESPONSIBILITY

General Defenses:- are circumstances that relieve an accused from conviction of guilt and its consequent penalty. These are general defenses, to all crimes (excuses and justifications) & special defenses for special crimes.

- The Criminal Code of 2005 does not follow this dichotomy.

Excuses are defenses that arise because the defendant is not blameworthy for having acted in a way that would otherwise be criminal. the focus is on the individual criminal rather than on the crime committed.

Defenses that arise when the defendant has acted in a way that the law does not seek to prevent are called justification defenses. when there is an attack on legally protected rights, the steps taken to reverse the attack is justifiable act.

Section 1: Criminal Responsibility and Irresponsibility

Responsibility is a person's mental fitness to answer in a court for his/her action. Persons are criminally liable only if they are responsible for their acts.

Responsibility or irresponsibility is concerned with the criminals' awareness and their capabilities to control their action.

Irresponsibility may arise in three cases. With regards to adults, it may arise from **insanity** or **intoxication**, and with regards to **infants**, it may arise from their immaturity.

* Absolute Irresponsibility: Art. 48

Responsibility could not be defined in a positive, but only in a negative manner, and this is why most codes including the ours do not describe responsible but irresponsible persons.

Insanity:- is a complete defense to a criminal charge. He has no mens rea.

a defendant first, does not know the nature and quality of his act (no act requirement), second he does not know the wrongfulness of his act (no mens rea).

* Limited Responsibility: Art. 49- guilty but mentally ill . Such a person may neither be relieved of liability, since he is not fully irresponsible, nor should he be liable to a full punishment, since he is not fully responsible.

This is a question of degree may arise. In most cases only expert evidence will enable the court to decide whether and to what extent the accused is irresponsible.

A person is not partially responsible for the sole reason that he is of low intelligence or poor education.

Section.2. Intoxication-Intentional or Culpable Irresponsibility: Art. 50

* Voluntary and Involuntary Intoxication- The main deference between Art. 50 and 48, 49 is not the bio-psychological condition of the offender but it is the condition,that creates the irresponsible nature of the offender. it is the doer who puts himself into a condition of irresponsibility or of limited responsibility by means of alcohol or drugs or by any other means.

Sub-Art.	State of the Defendant	State Induced By	Crime Committed	Legal Consequence
Art. 50/1	Absolute or Limited irresponsibility	Own fault (Voluntary Intoxication)	Intentionally (In order to...)	Fully liable to punishment
Art 50/2	Absolute or Limited irresponsibility	Own fault (Negligence)	Negligently	Punishable for negligent commission of the crime
Art. 50/3	Absolute irresponsibility	Own fault	Accidentally (Neither contemplated nor intended)	Punishable under Art. 491 provided the crime is punishable with at least 1 year.
Art. 50/4	Absolute irresponsibility	No fault on his part (i.e. has been coerced)	While incapable of forming any mental	Shall not be liable to punishment

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Section. 3. Infancy/Immaturity 0-9: Art. 52

an infant is incapable of distinguishing between right and wrong and so no criminal responsibility could be fastened in regard to his deeds.

Young persons 9-15 , are criminally liable b/c . First, persons begin to understand the nature of their acts, to be able to form a decision and to keep to it between the age of nine and fifteen. their intelligence and volition develop and become gradually closer to those of adults.

Secondly, the commission of a crime shows that the time has come to take action because no action has been taken at home or school or it has failed.

the primary aims of any action taken with respect to young persons are and must be education and correction. To make them useful citizens.

Transitory Age 15- 18 : the court has three options. First, it may order any of the penalties applicable to adults and mitigate it according to article 179. Secondary, it may order one of the special penalties applicable to young persons. Finally, the court may order special measures applicable to young criminals based on the conditions laid down under article 177.

UNIT-II

AFFIRMATIVE DEFENSES

legal defenses against a criminal charge.

Section.1. Lawful, Justifiable and Excusable Acts:

The Ethiopian Code does not follow lawful(acts done in circumstances which legitimate them) , justifiable (acts done in circumstances excluding intentional guilt) & excusable (acts done in circumstances reducing the degree of guilt) classes of acts with respect to which the ordinary rules concerning criminal guilt do not apply or fully apply.

Lawful Acts- (Acts Required or Authorized by Law: Art.68) Because of the existence of the legal right or duty to act, the act, which would otherwise be criminal, is a legitimate one for which the doer is not punishable.

A. Acts Relating to Public, State or Military Duties

B. Right of Correction or Discipline:- Art.2039(c) of the Civil Code impliedly authorizing the parents, guardians and masters to use reasonable use of force for the purposes of chastisement. Art.576/3 OF cc LIMITS ZIS RT.

C. Exercising Private Rights: - Arts.1148 and 2076(2) justify the protective actions of a holder.

*** Professional Duty: Art. 69-** Acts done in the exercise of a professional duty come within the general category of acts authorized by law. It is exempted b/c the fact that the act is ordered by law.

if a doctor terminates a pregnancy on medical ground and report that to the right authority, as he is required to so by law, he would not be punished for breach of professional secrecy.

*** Consent As a Defence: Art. 70-** Consenting to donate any of his bodily parts.

*** Coercion/Duress: Arts. 71 & 72-** a defense that the actor engaged in the conduct charged to constitute an offense because he is coerced to do so by the use of, or a threat to use, unlawful force against his person or the person of another, which a person of reasonable firmness in his situation would have been unable to resist.

like an insane person or intoxicated person he is totally deprived of his freedom of choice and therefore equally deserves the same treatment as long as the loss of will power is involuntary.

*** Superior/Subordinate Relation: Arts. 73 & 74-** arises when a person commits an offense on the order of someone to whom he owes obedience. In both administrative and military superior.

Section: 2. Necessity and Legitimate Defence:

General State of Necessity: Arts.75-76- the doing of harm is the only alternative to the suffering of harm. sometimes called an “act of God,” , fire, a storm, an earthquake, or a shipwreck

necessary acts, unlike acts done in legitimate defense, are not deemed to be lawful. In case of necessity the actor does not have the right to protect his interests at the expense of those of another and is not authorized by law to cause harm so long as he is not threatened with or subjected to, an unlawful attack.

Under the 1957 penal code, the defense of necessity covers everyone who falls in a state of emergency. The second paragraph of Art.75 provides for an exception where necessity is not a defense notwithstanding that all the necessary conditions to raise the defense is met.

- There must be a Danger
- The Danger must be Imminent
- The Danger must be Serious
- The Danger Could Not Otherwise Be Averted
- The Harm must be Proportional
- the absence of fault on the side of the doer. If a person intentionally creates the situation of necessity, . . .

Legitimate Defense: Arts. 78, 79- when a person is suddenly faced with an attack to his person or property and immediate aid from the state machinery is not available, that person is entitled to defend himself and resist the attack and to inflict on the attacker any harm that is necessary for the purpose of defense.

Legitimate defense is one specific type of necessity, and therefore has much in common. In both cases, a situation of distress arises which cannot be solved otherwise than by the doing of harm.

D/nces

- (i) necessity is basically one of aggression while an act under Art 78 is one of defense,
- (ii) the doer of a necessary act, unlike a person who defends himself, is not resisting an unlawful assault.
- (iii) in the case of necessity the conflict occurs is between two legitimate interests but in the case of legitimate-defense the conflict occurs is not between two legitimate interests.

Section. 3. Mistake of Fact, Mistake of Law and Ignorance of law: Arts.80&81

Mistake of Fact and Mistake of Law- Mistake or ignorance of fact can serve as a defense if it negates the state of mind (mens rea) required for the crime.

A fact may consist of, a phenomenon perceptible by the sense. (e.g. the doer mistakes arsenic for sugar) or a state of mind (e.g. the doer believes that someone intends to kill him)

Mistake of Law and Ignorance of Law- ordinarily means mistake as to the existence of any law on a relevant subject as well as mistake as to what the law is.

Ignorance of the law has rarely been sufficient to excuse criminal conduct. It is permitted as a defense only in situation in which the law is not widely known and a person cannot be expected to be aware of a particular law (foreigner).

In Eth, Art.81 (2) CC, ignorance of law is not excuse but the court may reduce the punishment.

Art.81 (3) states that in exceptional cases of absolute and justifiable ignorance and good faith and where criminal intent is not apparent, the court may impose no punishment. This stand of the criminal code shows that it stands in a half way between the two schools (no defense & defence viz exception).

UNIT-III

CRIMINAL PUNISHMENT AND ITS APPLICATION

Section. 1. Definition and Purpose of punishment:

Definition of Punishment:- Broadly speaking punishment is the response of the society to socially dangerous behavior.

Purpose of Punishment-

*Retribution- punishment satisfies the feeling of revenge.

*Deterrence:-the purpose of the punishment is to deter the criminal from committing crime in future and to set as an example to the prospective criminals.

*Prevention/Incapacitation:-to prevent the criminal from committing crimes by physically disabling him by separating him and keeping him in seclusion from the society for a certain period of time.

***Reformation /Rehabilitations-** to change the character of the offender. The effort to restore a man to society as a better and wiser man and as a good citizen.

Section.2. Kinds Of Punishments

- Ordinary punishments applicable to Adults –Book II, Title I, Articles 90-156.
- Measures and penalties applicable to young persons-Book II, Title I Articles 57-177.
- Penalties and measures applicable to Petty offences-Petty Code, Book VII Title II Art 746-764.

*three categories of punishments mentioned in Articles 90-156:

I. Principal penalties II. Secondary penalties III. Special measures applicable to Adults

Principal Penalties - can be put under the following heads:

-Pecuniary Penalties-art. 90-102- Fine, Sequestration & Other pecuniary effects

-Punishments Restricting or Depriving Liberty – Art. 103-116- compulsory labour, Imprisonment

1. Simple Imprisonment- art 106

2. Rigorous Imprisonment-art 108

-Death Penalty – Art. 117-120- the most precious right to life embodied under Art 15 of the Constitution which obviously permits the deprivation of life as a punishment for serious crimes without doubt is interpreted subject to z the most important international instruments that guarantee the right to life.

Secondary Penalties- before imposing a secondary penalty the court has to pronounce a primary penalty, which it deems to be appropriate for a crime. However, they may replace the principal penalty under the conditions stated by the provision of article 122(2).

Special Measures Applicable to Adults- have the purposes of reforming and educating the person so that he abstains from committing further crime when he gets back to the society after serving his sentence in the prison.

- * Measures applicable Irresponsible persons and criminals with limited responsibility

- * General Measures for the Purposes of Prevention and Protection

- * Measures of a Material Nature (Guarantee of Good Conduct, seizure of all dangerous articles)

- * Measures Entailing Restriction on Activities (Suspension and withdrawal of a license, Prohibition and closing of an undertaking)

- * Measures Entailing a Restriction on Personal Liberty (Prohibition from resorting to certain places, Prohibition to settle down or reside in a place, Obligation to Reside in Special Place or Area, Placing under Supervision, Withdrawal of Official Papers, Expulsion)

- * Measures for the Purpose of Information (Notification to the Competent Authority, Publication of the Judgment, Entry in the Judgment Register)

Section.3. Determination Of Punishment:

General Principles of Determination of Punishment: Arts. 87-89

Extenuating Circumstances 82-67

Section.4. Post Conviction Processes

- Suspension of penalty and conditional release,

- Pardon and Amnesty 129 & 130

Reinstatement Arts.232-237

Differences between Pardon and Amnesty:

- Pardon is remittance of penalty while amnesty is a general pardon especially for political crimes against government.

- Pardon is granted by the competent authority where as amnesty is granted by the appropriate competent authority.

- In pardon, the remission of sentence may be whole or in part and in amnesty, it is always complete remission.

- Pardon may completely remit the penalty or commute the same to a penalty of lesser nature or gravity.
 - Pardon may apply to all penalties and measures whether principal or secondary. But amnesty may be granted in respect to certain crimes and certain classes of criminals only.
 - The order of pardon may determine the conditions to which it is subjected to and its scope. Amnesty may be either absolute or subject to certain conditions and obligations.
- Pardon shall not cancel the sentence. However, amnesty, cancels both the indictment and the sentence and bars or discontinues any prosecution from the moment of its promulgation.